

HOUSE No. 688

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to public school workplace security.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Benjamin Tobin</i>		<i>1/15/2025</i>

HOUSE No. 688

By Representative Sabadosa of Northampton (by request), a petition (accompanied by bill, House, No. 688) of Benjamin Tobin relative to legal protections for certain educators and school staff. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to public school workplace security.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1: Purpose

2 The purpose of this bill is to provide legal protections for educators and staff against
3 unjust, antagonistic, and harmful treatment by school administrators and to establish
4 accountability measures for administrative conduct within Massachusetts public schools to
5 ensure that staff. Additionally, this act will ensure that conflicts of interest by school
6 administrators are investigated by the attorney general's office rather than the Department of
7 Elementary and Secondary Education.

8 Section 2: Definitions

9 1. "Educator" refers to any teacher, instructor, or staff member employed in a public
10 school.

2. "Administrator" refers to any individual serving in a managerial capacity within a school or school district.

3. "Vindictive actions" are actions that are retaliatory in nature, aimed at punishing an educator for lawful and ethical conduct. These actions would also fall under the category of bullying, harassment, and retaliation and could include intentionally negative performance reviews to defame the educator, creating a toxic work environment, placing staff in situations that are unethical, harmful, or unsafe, asking staff to perform duties outside of their licensure (ex. moderate disabilities working with severe disabilities and behavior), not providing appropriate training before asking educators to engage in a situation.

Section 3: Provisions

1. Protection Against Retaliation: a. No educator shall be subject to disciplinary action, harassment, or any form of retaliation for reporting misconduct or advocating for educational policies that promote the well-being of students. b. Educators shall have the right to appeal any disciplinary actions taken against them that they believe are the result of vindictive actions by administrators.

2. Establishment of a Review Board: a. A Review Board shall be established within each school district to investigate complaints made by educators against administrators. This board shall be anonymous b. The Review Board shall consist of teachers, administrators, and community representatives to create a balanced perspective on administrative conduct.

3. Accountability Measures: a. Administrators found to engage in retaliatory actions against educators shall face disciplinary measures, which may include suspension or termination of employment and removal of licensure b. An annual report shall be submitted to the state

legislature detailing complaints filed, outcomes of investigations, and actions taken against administrators.

4. Attorney General's Office: Complaints against school administrators shall be investigated by the attorney general's office rather than the Department of Education given the Department's clear conflict of interest in investigating their own administrators and their vested interest in ensuring the continuity of administrators. The attorney general shall be given broad powers to investigate and penalize administrators found to have conflicts of interest and or who have engaged in aggressive or unjustly harmful actions against educators.

Section 4: Implementation

This act shall take effect immediately upon passage, and school districts will implement necessary training and awareness programs for both educators and administrators regarding the provisions of this law.

Section 5: Severability

If any provision of this act is found to be invalid, the remaining provisions shall remain in effect.